

		Plaintiff's claims for illegal seizure of property and his right to the home and ability to sell the home which were at issue in the Complaint. Further, Plaintiff does not show a meritorious case or diligence in seeking to set aside or vacate the dismissal after Plaintiff filed the request for dismissal nearly 14 months before the instant motion to vacate was filed. Based on the foregoing, Plaintiff's motion to vacate the dismissal is DENIED. <i>Defendant to give notice.</i>
102	Rodriguez vs. Saddleback Park Villas Condominium Association, Inc., 25-01503635	The motion by Plaintiff Juan Manual Rodriguez to Set Aside Dismissal is GRANTED. Here, Plaintiff contends the dismissal of the entire action was the result of a clerical mistake. On or about August 27, 2025, Plaintiff's counsel's filed a Request for Dismissal (Judicial Council Form CIV-110), which was intended to dismiss only Defendant Rafael Romero and Defendant Elizabeth Serrano. (Langley Decl. ¶ 2; see also ROA 11.) Section 1 of the Request for Dismissal states: "TO THE CLERK: Please dismiss this action as follows:" and provides several options that may be checked. (See ROA 11.) Plaintiff's Request for Dismissal marked the checkbox next to "Complaint" and the checkbox next to "Other", specifying "RAFAEL ROMERO, an individual and ELIZABETH SERRANO, an individual only". (Id.) The court clerk marked the checkbox that the "Dismissal was entered as requested on (date): 08/27/2025." (ROA 11.) A dismissal of the entire action was entered on September 17, 2025. (Langley Decl. ¶ 5.) Plaintiff's counsel did not intend to dismiss the entire case and contends that the Court's record does not reflect Plaintiff's intent. The court notes that there is no entry in the docket reflecting that the dismissal of the entire action was entered on 9/17/2025. The court finds that the 8/27/2025 dismissal was entered as the result of a clerical error that was facilitated by Plaintiff's ambiguous Request for Dismissal. As such, the motion is

		GRANTED and the court sets aside the dismissal entered on August 27, 2025. The court sets a Case Management Conference for August 13, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
103	Doe vs. City of Santa Ana, 24-01405644	Rosie Zilifyan ("Moving Attorney") moves to be relieved as counsel of record for plaintiff Jane Doe. The Court notes that no proof of service has been filed with the moving papers. Therefore, it is unclear whether all parties have been properly served. The Court further notes that the moving papers do not have the correct address where the hearing on the motion to be relieved as counsel will be held. Thus, even if the moving papers have been properly and timely served on the client and all parties who have appeared, the notice of motion would be deficient. In light of the above, the motion to be relieved as counsel is DENIED without prejudice. <i>Moving Attorney to give notice.</i>
104	Montoya vs. FCA US, LLC., 24-01445674	Defendants, FCA US LLC and Tuttle-Click, Inc. (collectively "Defendants"), move to compel Plaintiff Maria Montoya's deposition and production of documents pursuant to Code of Civil Procedure section 2025.450. In opposition, Plaintiff represents that the parties resolved the issues raised in the motion through further meet and confer efforts, and that Plaintiff has provided deposition availability and agreed to appear for deposition. (Washington Decl., ¶¶ 3-4, Ex. 1.) Plaintiff therefore contends the motion is moot, but does not oppose an order setting a deposition date. Although the parties appear to have resolved the discovery dispute through further meet and confer efforts, Plaintiff has not yet appeared for deposition. Accordingly, an order compelling Plaintiff's deposition is appropriate to ensure completion of discovery and avoid further scheduling disputes.